provision was beyond the amending power of the Parliament because it affected the basic structure of the constitution.

Impact of the Judgement: Following the above two judgements of the Supreme Court in Kesavananda Bharati and Indira Nehru Gandhi cases, the 42nd Amendment Act (1976) inserted two new Clauses (4) and (5) in Article 368. The Clause (4) provided that an amendment of the Constitution (including the provisions relating to the fundamental rights) made under Article 368 shall not be called in question in any court on any ground. While the Clause (5) declared that there shall be no limitation whatever on the constituent power of Parliament under Article 368. Thus, it is clear that these two Clauses were inserted in order to dilute the above doctrine of basic structure that has been held to be a limitation on the amending power of the Parliament.

A.D.M. Jabalpur Case (1976)

Name of the Case	: A.D.M. Jabalpur vs. Shivakant Shukla
Year of Judgement	: 1976
Popular Name	: Habeas Corpus case
Related Topic/ Issue	: Right to life and personal liberty during the emergency
Related Article/Schedule	: 21 & 359

Supreme Court Judgement: It held that Article 21 is the sole repository of the right to life and personal liberty against the state. If the enforcement of that right is suspended by a Presidential Order under Article 359, then the detenu will have no locus standi to a writ petition for challenging the legality of his detention. In view of the Presidential Order dated 27th June 1975, no person has any locus standi to move any petition before a High Court under Article 226 for a writ of habeas corpus or any other writ to challenge the legality of a detention order on any ground. Accordingly, the court upheld the constitutional validity of Section 16A(9) of the Maintenance of Internal Security Act (MISA), 1971.

Impact of the Judgement: In this case, the Supreme Court took a restrictive meaning of right to life and personal liberty under Article 21 and gave a seriously flawed judgement. The court argued that any claim to a writ of habeas corpus on any ground amounted to the enforcement of the right to life and personal liberty which had been suspended by the Presidential Order. Consequently, it failed to fulfill its role as the defender and guarantor of the fundamental rights of the citizens during the period of emergency (1975–77). Later, the 44th Amendment Act (1978) amended Article 359 to the effect that the enforcement of the right to life and personal liberty under Article 21 can not be suspended by a Presidential Order. In view of this amendment, the judgement delivered in this case is no longer a good law and is left only of academic importance.

Maneka Gandhi Case (1978)

Name of the Case	: Maneka Gandhi vs. Union of India
Year of Judgement	: 1978